

Manjit Kaur vs 1. The Chandigarh Sector 21 Universal ... on 12 February, 2014

STATE
CONSUMER DISPUTES REDRESSAL COMMISSION,

U.T., CHANDIGARH

Transfer
Application No.

:

32 of 2014

In

Consumer Complaint
No.

704 of 2008

Date of Institution

:

07.02.2014

Date of Decision

:

12.02.2014

Vinod Goel W/o Sh.

Ashok Kumar, House No.1173, The Chandigarh, Sector 21 Universal Housing
Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant

Versus

1. The Chandigarh Sector

21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector

21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Si Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088,
Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal,

Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma,

Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma,
Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, Chandigarh

....Non-applicants/Opposite
Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

31 of 2014 In Consumer Complaint No. 710 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Varinder Sharma S/o Sh. Madan Lal Sharma, House No.1145, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR.

DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE
CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application
No. :

30 of 2014 In Consumer Complaint No. 701 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Usha Kiran w/o Sh.

Jagdish Kohli, House No.1224, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

29 of 2014 In Consumer Complaint No. 702 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Sushma Sharma, w/o Inder Mohan Sharma, House No.1125, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/ complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE
CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application
No. :

27 of 2014 In Consumer Complaint No. 705 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Surinder Kaur w/o Karamjit Singh, House No.1144, The Chandigarh,
Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.
3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.
4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.
5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.
6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE
CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application
No. :

26 of 2014 In Consumer Complaint No. 713 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Shalini Vadehra D/o Sh. P.D. Vadehra, House No.1095, The Chandigarh,
Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.
2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.
3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

25 of 2014 In Consumer Complaint No. 700 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Sanjeev Jain, S/o Sh.

D.K. Jain, House No.1202, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, applicant/complainant, in person.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

23 of 2014 In Consumer Complaint No. 706 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Sangeeta Kumari w/o Gulshan Kumar, House No.1132, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

21 of 2014 In Consumer Complaint No. 712 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Raj Kumar Gupta S/o Late Sh. Roshan Lal, on behalf of Nominee Parveen Gupta w/o Arun Gupta, House No.1233, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

18 of 2014 In Consumer Complaint No. 714 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Pala Ram S/o Sh. Nand Ram, House No.1086, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs.

The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.
3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.
4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.
5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.
6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

17 of 2014 In Consumer Complaint No. 697 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Mukesh Kumar S/o Late Sh. Raj Kumar, House No.1170, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.
2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.
3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.
5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.
6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE
CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application
No. :

16 of 2014 In Consumer Complaint No. 698 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Manjit Kaur w/o Surjit Singh, House No.1162, The Chandigarh, Sector
21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/ complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

15 of 2014 In Consumer Complaint No. 495 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Kuldeep Singh S/o S.Raghubir Singh, House No.1139, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

14 of 2014 In Consumer Complaint No. 699 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Kuldeep Singh Bhatia, S/o Sh. R.S. Bhatia, House No.1090, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/ complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

13 of 2014 In Consumer Complaint No. 709 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Kulwant Singh S/o Arjun Singh Sandher, House No.1126, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays

Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

12 of 2014 In Consumer Complaint No. 715 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Hardeo Singh S/o Late Shri Jhagaru Singh, House No.1131, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and

spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.

6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

11 of 2014 In Consumer Complaint No. 703 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Hardeep Singh S/o Late Sh. Sant Singh, House No.1133, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT Vide our detailed order of the even date, recorded separately, in connected Transfer Application No.01 of 2014, titled as Rateesh Sharma Vs. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors., this application has also been dismissed, with no order as to costs.

2. District Forum-II, has been directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, has been directed to ensure that the directions are complied with, in letter and spirit.

3. The parties have been directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

4. The District Forum records, alongwith a certified copy of the order, has been ordered to be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

5. Certified copies of this order, alongwith the main order, be sent to the parties, free of charge.
6. The Transfer Application files, be consigned to Record Room, after due compliance Sd/- Sd/-

(DEV RAJ) MEMBER (JUSTICE SHAM SUNDER (RETD.)) PRESIDENT Rg STATE CONSUMER DISPUTES REDRESSAL COMMISSION, U.T., CHANDIGARH Transfer Application No. :

01 of 2014 In Consumer Complaint No. 496 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Rateesh Sharma, H.No.123, Sector 40A, Chandigarh, now at House No.1219, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus

1. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Santokh Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

2. The Chandigarh Sector 21 Universal Housing Building First Society Ltd., through its Administrator Sh.Udham Singh, Office of Registrar Co-operative Societies Chandigarh, 30 Bays Building, Sector 17-A, Chandigarh.

3. Registrar Co-op.

Societies Chandigarh U.T., 30 Bays Building, Sector 17-A, Chandigarh.

4. Inderjeet Bajaj, Ex.

President C/o Nand Lal, SCF 14, Sector 29, Chandigarh.

2nd Address: House No.1088, Sector 7, Panchkula.

5. Surjit Chaudhary, Ex.

Secretary, House No.117, Sector 18-B, Chandigarh.

6. Devinder Gupta, Ex.

President, SCF-10, KB, Empire Store, Sector 21-C, Chandigarh.

7. Anil Aggarwal, Cashier-cum-Executive Member, H.No.1214, Universal Enclave, Sector 48-B, Chandigarh.

8. Kamal K.Sharma, Executive Member, 152/2, Sector 45-A, Chandigarh.

9. Devinder Pal Sharma, Executive Member, H.No. 1114, Universal Enclave, Sector 48-B, ChandigarhNon-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

11 of 2014 In Consumer Complaint No. 703 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Hardeep Singh S/o Late Sh. Sant Singh, House No.1133, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

12 of 2014 In Consumer Complaint No. 715 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Hardeo Singh S/o Late Shri Jhagaru Singh, House No.1131, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

13 of 2014 In Consumer Complaint No. 709 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Kulwant Singh S/o Arjun Singh Sandher, House No.1126, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

14 of 2014 In Consumer Complaint No. 699 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Kuldeep Singh Bhatia, S/o Sh. R.S. Bhatia, House No.1090, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/ complainant.

Transfer Application No. :

15 of 2014 In Consumer Complaint No. 495 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Kuldeep Singh S/o S.Raghubir Singh, House No.1139, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

16 of 2014 In Consumer Complaint No. 698 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Manjit Kaur w/o Surjit Singh, House No.1162, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/ complainant.

Transfer Application No. :

17 of 2014 In Consumer Complaint No. 697 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Mukesh Kumar S/o Late Sh. Raj Kumar, House No.1170, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

18 of 2014 In Consumer Complaint No. 714 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Pala Ram S/o Sh. Nand Ram, House No.1086, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

21 of 2014 In Consumer Complaint No. 712 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Raj Kumar Gupta S/o Late Sh. Roshan Lal, on behalf of Nominee Parveen Gupta w/o Arun Gupta, House No.1233, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

23 of 2014 In Consumer Complaint No. 706 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Sangeeta Kumari w/o Gulshan Kumar, House No.1132, The Chandigarh,
Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First
Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

25 of 2014 In Consumer Complaint No. 700 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Sanjeev Jain, S/o Sh.

D.K. Jain, House No.1202, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd.
Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society
Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, applicant/complainant, in person.

Transfer Application No. :

26 of 2014 In Consumer Complaint No. 713 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Shalini Vadehra D/o Sh. P.D. Vadehra, House No.1095, The Chandigarh,
Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First
Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

27 of 2014 In Consumer Complaint No. 705 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Surinder Kaur w/o Karamjit Singh, House No.1144, The Chandigarh,
Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First
Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

29 of 2014 In Consumer Complaint No. 702 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Sushma Sharma, w/o Inder Mohan Sharma, House No.1125, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/ complainant.

Transfer Application No. :

30 of 2014 In Consumer Complaint No. 701 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Usha Kiran w/o Sh.

Jagdish Kohli, House No.1224, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

31 of 2014 In Consumer Complaint No. 710 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Varinder Sharma S/o Sh. Madan Lal Sharma, House No.1145, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. Sanjeev Jain, Authorized Representative, on behalf of the applicant/complainant.

Transfer Application No. :

32 of 2014 In Consumer Complaint No. 704 of 2008 Date of Institution :

07.02.2014 Date of Decision :

12.02.2014 Vinod Goel W/o Sh.

Ashok Kumar, House No.1173, The Chandigarh, Sector 21 Universal Housing Building First Society Ltd. Sector 48B, Chandigarh.

Applicant/Complainant Versus The Chandigarh Sector 21 Universal Housing Building First Society Ltd., and Ors.

..Non-applicants/Opposite Parties.

Argued by: Sh. S.K. Sharma, Authorized Representative, on behalf of the applicant/complainant.

BEFORE: JUSTICE SHAM SUNDER (RETD.), PRESIDENT.

MR. DEV RAJ, MEMBER.

PER JUSTICE SHAM SUNDER (RETD.), PRESIDENT The aforesaid eighteen Transfer Applications, have been filed by the applicants/complainants, for the transfer of Consumer Complaint Cases, referred to above, from the District Consumer Disputes Redressal Forum-II, U.T., Chandigarh, to the District Consumer Disputes Redressal Forum-I, U.T., Chandigarh, [(hereinafter to be referred as District Forum (II) and District Forum (I) respectively)].

2. The complaints, aforesaid, filed by the applicants/ complainants, with regard to the deficiency, in rendering service, on the part of the Opposite Parties/non-applicants, on account of delay, in handing over possession, as also defective and incomplete construction of flats, were dismissed by District Forum (II), vide order dated 29.06.2009, by District Forum-II. The appeals against the order dated 29.06.2009 were filed, in this Commission, which were allowed, vide order dated 09.04.2010, and the complaints were remanded back. It was stated that, in paragraph number 18 of the order dated 09.04.2010, passed by this Commission, it was held that the application for appointment of Local Commissioner, deserved to be allowed. It was further stated that despite such directions, having been given by this Commission, in the order dated 09.04.2010, the application for Local Commissioner was dismissed by the District Forum. It was further stated that, on 17.01.2014, the applicants/complainants were threatened by the Members of District Forum-II, that, in case, they did not enter into compromise with the Society/Opposite Party No.1, the complaints would be dismissed. It was further stated that, as such, District Forum-II, has already made up its mind, to dismiss the complaints, and it would be a futile exercise to address the arguments, before it. It was

further stated that the complaints were instituted, in the year 2008, and more than fifty times, the same (complaints) were adjourned, after having been remanded, but the same have not been decided by District Forum-II, till date. It was further stated that, on account of these reasons, the applicants/complainants do not expect free and fair justice, from District Forum-II. Accordingly, the prayer, referred to above, was made in all the complaints.

3. We have heard Sh. S.K. Sharma and Sh. Sanjeev Jain, Authorized Representatives, on behalf of the applicants/ complainants, and have gone through the record of the complaint cases, received from District Forum-II, carefully.

4. It is settled principle of law, that a case from one Forum, to another Forum, can only be transferred, if there are legal and valid grounds, for doing so. Mere fanciful apprehension, in the mind of the applicants, that they will not get justice, from a particular Forum, where the matter was pending, could not be taken, as a sufficient ground, to transfer the matter/case, from one Forum to another Forum. Transfer of a case from one Forum to another Forum, indirectly casts doubt on the competence and integrity of the President and the Members thereof. Mere presumptions or possible apprehensions, do not constitute sufficient grounds, for transfer of a case. Transfer could be made, if there are good and sufficient grounds, clearly set out in the petition.

5. The first grievance of the applicants/ complainants, set up in the applications, referred to above, is to the effect that the appeals against the common order dated 29.06.2009, vide which the complaints were finally decided, by the District Forum, were filed. The said appeals were accepted by this Commission, and the complaints were remanded back, with clear-cut directions to District Forum-II, to appoint a Local Commissioner, but instead of complying with the said order, it (District Forum-II), dismissed the application for the said purpose, which fact was sufficient to entertain a doubt that fair justice will not be dispensed to the applicants/complainants. It may be stated here, that the Consumer Complaints, referred to above, were filed in the year 2008. Alongwith the complaints, the applications for appointment of a Local Commissioner, were also filed by the complainants. Though, inadvertently, those applications could not be decided, by District Forum-II, at the time of final disposal of the complaints, vide order 29.06.2009. Later on, after the remand of the complaints, on 02.09.2011, the Counsel for the complainants, made statements, withdrawing the applications, for the appointment of a Local Commissioner. Later on, again the complainants filed applications dated 14.11.2011, for the appointment of a Local Commissioner, in the complaints. After hearing the Counsel for the complainants, Opposite Parties No.1, 2, 4, 5, 7, 8 and 9 the Govt. Pleader for Opposite Party No.3, and, on going through the record, the District Forum, dismissed the applications, for the appointment of a Local Commissioner, vide order dated 05.03.2012, by recording cogent reasons. The perusal of the order dated 09.04.2010, does not at all indicate that any direction was given to District Forum-II, that the Local Commissioner should be appointed by it (District Forum-II), in pursuance of the applications, filed by the applicants/complainants, for the said purpose. The order dated 09.04.2010, passed by this Commission, in the appeals, against the common order dated 29.06.2009, is to be read as a whole. No doubt, some observations were made by this Commission, in the order dated 09.04.2010 that a qualified Local Commissioner would have been the right person to assist District Forum-II, in arriving at a logical and fair conclusion, in deciding the issue, with regard to the defects and

drawbacks, in the flats. It was also observed by this Commission in the order dated 09.04.2010 that in its opinion, the request of the complainants for the appointment of a Local Commissioner, at their cost, should have been conceded to by it (District Forum-II). However, the concluding paragraph number 19 of the order dated 09.04.2010, vide which the appeals were accepted and the complaints were remanded back to District Forum-II, by this Commission, reads as under:-

In view of the foregoing discussion, we find merit in the prayer of the appellants that the complaint cases be remanded back to the learned District Forum. Consequently, all the appeals bearing No.408 to 427 all of 2009 are accepted and the impugned orders are set aside and the respective complaint cases are remanded back to the learned District Forum for deciding afresh, after giving due consideration to the application for the appointment of a Local Commissioner filed by the complainants and also after giving due opportunities to both the sides to bring on record any other relevant documents/ evidence. Parties are directed to appear before the learned District Forum concerned on 26.4.2010.

6.

It is evident, from the afore-extracted paragraph number 19 of the order dated 09.04.2010, passed by this Commission, that the complaint cases were remanded back to District Forum-II, by accepting all the appeals and setting aside the common order dated 29.06.2009. District Forum-II was directed to decide the cases, after giving due consideration to the applications, for the appointment of a Local Commissioner, filed by the complainants, as also after giving due opportunities to the parties, to bring on record, any other relevant documents/evidence. In our considered opinion, no specific direction was given to District Forum II, for the appointment of a Local Commissioner. The State Consumer Disputes Redressal Commission, only directed District Forum II, to decide the applications, filed for the appointment of a Local Commissioner. From such a direction, it could not be deduced that District Forum II was bound to appoint a Local Commissioner. Since the applications dated 14.11.2011, for the appointment of a Local Commissioner were dismissed by the District Forum, vide order dated 05.03.2012, if the applicants/ complainants had any grouse against the said order (05.03.2012), they were at liberty to file a Revision Petition, before this Commission. They, however, did not do so. The order dated 05.03.2012, has, thus attained finality and cannot be reopened in these proceedings. This ground taken up by the applicants/ complainants, for the transfer of complaints, therefore, being devoid of any substance, is rejected.

7. The second grievance of the applicants/ complainants, set up in the applications, referred to above, is that the Members of District Forum-II, forced them to enter into a compromise with respondent no.1/Opposite Party No.1, and, as such, they did not expect the dispensation of fair justice, by the said Forum. The perusal of the complaint files, clearly goes to show that, on none of the dates of hearing, the complainants/applicants were present, before the District Forum. Perusal of the short orders/Zimini Orders, recorded by the District Forum, in the complaints, clearly goes to show that only the Counsel for the complainants, put in appearance. There is no affidavit of the Counsel for the applicants/complainants, to the effect that the Members of the District Forum,

forced the complainants to enter into a compromise, with respondent no.1/ Opposite Party No.1. Even, in none of the short orders/Zimini Orders, there is any mention that the complainants were even asked by the Members of District Forum-II, to enter into a compromise, with respondent no.1/Opposite Party No.1, what to speak of forcing them. Had such an event happened, then the same would have certainly been recorded, in the short orders/Zimini Orders. Even if, it assumed for the sake of arguments that the parties were asked to enter into an amicable settlement of the dispute, the same was permitted by law. Under the Legal Services Authorities Act, 1987, Chapter IV-A, Lok Adalats can be held by the District Forums, as also the Commission, with a view, to prevail upon the parties, to enter into an amicable settlement. Even the Lok Adalats are held by the District Forums and this Commission, on a particular day, every week, for amicable settlement of the Consumer Disputes, by prevailing upon the parties, and if such disputes are not amicably settled, then the files are sent back to the regular stream for decision, on merits, after affording opportunity to the parties of being heard. Such a ground was apparently taken up by the applicants/complainants, for some undisclosed reasons, with a view to cast doubt, on the competence and integrity of the Members of District Forum-II. There is nothing, on the record, that the applicants/complainants, shall not be dispensed fair and impartial justice, in the matter of decision of the complaints. The ground, referred to, in this paragraph, being vague and not supported by any of the short orders/Zimini Orders, recorded by the District Forum, in the complaint files, being devoid of substance, is also rejected.

8. The third ground, set up by the applicants/ complainants, in the applications, referred to above, is to the effect that the complaints were filed in the year 2008, which were decided by the District Forum vide order dated 29.06.2009, the appeals against which were accepted on 09.04.2010, but even after the remand of the cases, though a period of about more than three and a half years, has lapsed, yet the same (complaints) had not been finally decided. To buttress this ground, it was also stated that about fifty adjournments were granted, after the remand of the complaints, but no progress has been achieved therein, till date. This grievance of the applicants/complainants appears to be correct, and is also supported by the record. According to Section 13 (3A) of the Consumer Protection Act, 1986, every endeavour should be made to decide the complaint within three months, from the date of service of the Opposite Party(s), except the one, in which the goods are required to be sent to the Laboratory for examination. In that event, the complaint is required to be decided, within a period of 5 months, from the date of service of the Opposite Party(s). The District Forum was required to adhere to the aforesaid provisions of the Act. The Consumer Protection Act, 1986 is a beneficial legislation, which provides for inexpensive and speedy disposal of the grievances of the consumers. Had these provisions been strictly adhered to by District Forum-II, it would have certainly decided the complaints, within the period stipulated, under the Act. However, the mere fact that the complaints have not been decided for a period of about more than three years, after the remand of the same, in itself, could not be said to be a sufficient ground, to transfer the same to District Forum-I. If the complaints are transferred to District Forum-I, then certainly further delay, in the disposal of the same, would be caused. However, directions can be given to District Forum-II, to finally dispose of the complaints, on merits, strictly in accordance with the provisions of law, within a period of one month, from 20.02.2014. If any of the Counsel for the parties, failed to address the oral arguments, then the written submission could be filed and entertained, as envisaged by Regulation 13(2) of the

Consumer Protection Regulations 2005. Redressal of the grievance of the applicants/complainants, therefore, does not lie, in the transfer of complaints, but only in the disposal thereof, expeditiously. The said ground, therefore, cannot be said to be sufficient, to transfer the complaints, from District Forum-II to District Forum-I, and, as such, stands rejected.

9. No legal, valid, reasonable and justified grounds exist, for transfer of the complaint cases, from District Forum (II) to District Forum (I), U.T., Chandigarh. The applications, therefore, deserve to be dismissed.

10. For the reasons recorded above, the applications, under disposal, being devoid of merit, must fail, and the same stand dismissed, with no order as to costs.

11. District Forum-II, is directed to finally dispose of all the complaints, on merits, strictly in accordance with the provisions of law, within one month, from 20.02.2014. The President, District Forum II, shall ensure that the directions are complied with, in letter and spirit.

12. The parties are directed to appear, before District Forum-II, on 20.02.2014, at 10.30 A.M., for further proceedings.

13. The District Forum records, alongwith a certified copy of the order, be sent back, to it, immediately, so as to reach there, well before the date and time fixed i.e. 20.02.2014, at 10.30 A.M.

14. Any observation, made in this order, shall not be taken as an expression of mind, on merits of the case. These observations are only limited, for the decision of transfer of applications.

15. Certified copies of this order, be sent to the parties, free of charge.

16. Certified copy of this order shall be placed, in each of the remaining Transfer Application files.

17. The Transfer Application files, be consigned to Record Room, after due compliance Pronounced.

February 12, 2014 Sd/-

[JUSTICE SHAM SUNDER (RETD.)] PRESIDENT Sd/-

(DEV RAJ) MEMBER Rg